DATA PROCESSING AGREEMENT

Synthetic controller–processor agreement | Mixed-quality test

DOCUMENT STATUS

Contains some useful clauses and several ambiguous or incomplete provisions. Intended to test nuanced clause-level analysis rather than a simple pass/fail result.

IMPORTANT TESTING NOTE

This is a fictional, synthetic contract created for software testing. It is not an executed agreement and must not be relied on as legal advice or as a verified statement of GDPR compliance. Names, addresses, dates, and business facts are fictional.

PARTIES

Controller: Northstar Retail Europe Ltd., 18 Market Square, Dublin, Ireland (fictional).
Processor: CloudLedger Systems Ltd., 42 Harbour Road, Rotterdam, Netherlands (fictional).

AGREEMENT DATE

11 October 2026

1. Definitions and roles

In this Agreement, “Controller”, “Processor”, “Personal Data”, “Personal Data Breach”, “Processing”, and “Data Subject” have the meanings given in Regulation (EU) 2016/679 (the GDPR). The Controller determines the purposes and means of processing. The Processor processes Personal Data on behalf of the Controller only as described in this Agreement and its Annex 1.

2. Subject matter, duration, nature and purpose

The Processor will provide hosted customer-support and order-management software for the Controller for the term of the underlying services agreement. Processing continues for the service term and any limited period needed to return or delete data. Processing consists of hosting, organizing, retrieving, transmitting, and supporting customer-service records for the purpose of managing customer enquiries and orders.

3. Categories of data and data subjects

Data subjects may include the Controller’s customers, prospective customers, and employees who contact customer support. Personal Data may include names, business contact details, order identifiers, customer-service correspondence, and account metadata. The Controller must not upload special-category data unless the parties first document the processing and establish an appropriate legal basis and safeguards.

4. Documented instructions

The Processor will process Personal Data in accordance with the Controller’s written instructions. The Processor may also use anonymised service metrics where the data has been irreversibly anonymised.

5. Confidentiality

The Processor will restrict access to personnel who need it for service delivery. Employees are bound by confidentiality terms in their employment contracts.

6. Security of processing

The Processor maintains access controls, backups, and encryption for data in transit. The contract does not describe review frequency, incident-response testing, or how the parties will assess whether measures remain appropriate.

7. Sub-processors

The Processor may use sub-processors identified on its website. It will make reasonable efforts to update the website, but does not promise advance notice or an objection process. The Processor will include appropriate data-protection terms in sub-processor contracts.

8. Data-subject rights

The Processor will provide reasonable assistance to the Controller with data-subject requests, subject to a fee for work beyond routine support. The contract does not state how quickly requests are forwarded.

9. Breach notification

The Processor will notify the Controller promptly after confirming a personal-data breach. The contract does not address notification before confirmation or what information must be provided.

10. DPIA and regulatory assistance

The Processor will provide reasonable technical information requested by the Controller. The contract does not expressly address assistance with data-protection impact assessments or prior consultation.

11. Audit and compliance information

The Processor provides an annual independent security report on request. On-site audits require mutual agreement, but the agreement does not provide a clear fallback if agreement cannot be reached or a regulator requires an inspection.

12. Return/deletion

Within 90 days after termination, the Processor will delete active production data. Backup copies may remain for up to 12 months, but the contract does not specify access restrictions or what happens if law requires retention.

13. International transfers

Data may be accessed by support staff in countries outside the EEA. The contract does not identify transfer destinations or the applicable Chapter V transfer mechanism.

14. Annex 1 — Processing details

Subject matter: hosted customer-support service. Purpose: handling customer requests. Duration: service term. Data subjects and data categories are described generally in Clause 3. No detailed retention schedule is attached.

15. Annex 2 — Sub-processors

The Processor maintains an online sub-processor list. The agreement does not attach the list or specify how changes are communicated to the Controller.

SIGNATURES

For the Controller: _____ Name/Title: _____ Date: _____

For the Processor: _____ Name/Title: _____ Date: _____

End of synthetic test contract.